

United States Court of Appeals for the Fourth Circuit

Record-Complete and Briefing Order

Asterglen Freight Software, Inc., Appellant, v. Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC, Appellees.

No. SYN-CA4-26-CV-4102 Appellate ECF No. 4 — Filed March 20, 2026

The Clerk has received the certified district-court docket and the electronic record designated for this appeal. The record is marked complete as of March 20, 2026. It includes the written papers and exhibits maintained in Civil Action No. SYN-NDWV-25-CV-0618 through the certification date. Appellant has stated that no transcript will be ordered because the summary-judgment and Rule 54(b) matters were resolved without an oral hearing.

The record-complete designation is administrative. It does not determine that every paper is admissible for every purpose, that the February 4 partial judgment is final under 28 U.S.C. § 1291, or that this Court has jurisdiction. The parties remain responsible for citing the specific record pages supporting each factual statement and for distinguishing an allegation, disputed fact, party submission, and judicial finding.

Appellant's opening brief is due April 29, 2026, forty days after the record-complete date under the ordinary civil schedule. The brief shall address appellate jurisdiction before discussing the preserved contract issue. It shall explain the unresolved status of Count II and Copper's amended counterclaim and shall quote the operative language of the February 4 order and partial judgment accurately.

Response, reply, and appendix directions

Appellees' response brief is due thirty days after service of appellant's opening brief unless filed earlier or changed by order. If the opening brief is filed on April 29, the ordinary response date is May 29, 2026. A response may be filed before that date. Appellees shall state whether they seek dismissal for lack of appellate jurisdiction and what disposition they contend should follow from any Rule 54(b) defect.

Any reply brief is due twenty-one days after service of the response brief and must be filed before submission unless the Court permits otherwise. If appellees serve a response on May 8, 2026, the reply date will be May 29, 2026. Appellant may file a notice that no reply will be submitted. Such a notice closes appellant's principal briefing but does not waive a position fairly presented in the opening brief.

The record uses continuous page references for the 234 pages transmitted from the district court. Briefs shall cite those pages in the established JA-number form. Citations must point to the page containing the stated proposition, not merely the first page of a multi-page filing. No separate duplicate compilation is required for this schedule because the certified electronic record supplies the continuously numbered record pages.

The parties shall include the contents, tables, certificates, and statements required by the appellate rules. Any contention based on material outside the district record must be identified and supported by an authorized procedure rather than embedded as fact in a brief.

Submission and continuing duties

After principal briefing closes, the appeal will be referred for consideration under Federal Rule of Appellate Procedure 34. The panel may order argument or submit the matter on the briefs if the applicable standard is satisfied. Until an order is entered, counsel should not represent that argument has been granted, denied, or held. Any change in district-court status material to appellate jurisdiction must be reported promptly through a supplemental status filing.

The Court specifically directs the parties to notify the Clerk if the district court adjudicates Count II, resolves Copper's amended counterclaim, revises the January 12 ruling, alters the February 4 order or judgment, or enters a judgment disposing of the entire action. The notice must identify the exact district entry and explain its potential effect without presenting new factual evidence.

Extensions are disfavored and must be requested before the affected deadline with the showing required by the rules. Filing a motion does not suspend a due date unless an order grants relief. Electronic service dates control the response and reply calculations stated here, and no additional service days are added for electronic transmission.

The Clerk shall serve this order on all appearing counsel. The order governs the briefing sequence in No. SYN-CA4-26-CV-4102 and leaves all jurisdictional and merits questions to the panel. Entered March 20, 2026 at the direction of the Court.